

Court No. - 39

Case :- WRIT - C No. - 28279 of 2022

Petitioner :- Ashok Kumar Jaiswal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Akhilesh Kumar Mishra

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard learned counsel for the petitioner. Sri Udit Chandra, learned Advocate has put in appearance on behalf of respondent Nigam.

The petitioner herein is raising the dispute with regard to the computation of the electricity bill.

The remedy before the petitioner is to approach to the Executive Engineer concerned by filing objection invoking the provisions of Clause 6.5 of Electricity Supply Code, 2005.

For the aforesaid, we dispose of the present writ petition with observation that in case, the petitioner files objection invoking the provisions of Clause 6.5 of Electricity Supply Code, 2005 before the Executive Engineer / respondent no. 5 raising all his grievances, the Executive Engineer concerned shall be under obligation to take an expeditious decision, in accordance with law, dealing with all points of objections, preferably, within a period of four weeks from the date of receipt of the objection.

For a period of two months from today or till the decision is taken by the Executive Engineer concerned, whichever is earlier, the demand notice dated 26.08.2019 shall be kept in abeyance.

In case of default in filing objection within the time given above, it would be open to the respondents to proceed against the petitioner, in accordance with law.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 12.10.2022

sailsh